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JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No. 36924/J/2022

Jamshed and another

Vs.

The State and another

JUDGMENT

Date of hearing	07.04.2025
For the Appellants:	Mr. Abid Saqi, Advocate.
For the State:	Mr. Muhammad Mustafa Chaudhry, Deputy Prosecutor General.
For the Complainant:	Mr. Muhammad Haroon Gondal, Advocate.

Tariq Saleem Sheikh, J. – On 02.01.2019 at 6:40 p.m., PW-1 Muhammad Azam (the “Complainant”) made an application (Exh. DA) to Sajjad Azam/SI (CW-9) seeking registration of an FIR. He stated that he was a resident of Village Rairka Zerien, Tehsil Phalia, District Mandi Bahauddin, and worked as a farmer. In September 2018, his son, Mulazim Ali (PW-2), contracted a love marriage with Nasira Bibi (daughter of Allah Bakhsh), which her family opposed. The Complainant further stated that he gave his daughter, Aqsa Bibi, in marriage to Nasira’s brother, Jamshed, to reconcile with them. On 02.01.2019 at 4:00 p.m., Mulazim Ali and Nasira Bibi went to their fields to pick vegetables where Jamshed, Rizwan, Muhammad Nawaz, and Atif attacked them. Jamshed fired a burst from his Kalashnikov at Mulazim Ali, hitting him in the right shin, while Rizwan shot Nasira Bibi with a Kalashnikov on her left shoulder. Muhammad Nawaz then fired at the left side of her abdomen with a .30-bore pistol. Atif also shot Mulazim Ali’s left shoulder with a .30-bore pistol. Jamshed fired again at Nasira Bibi, hitting her on the left shoulder. As a result, Mulazim Ali and Nasira Bibi collapsed. Upon hearing the gunshots, the Complainant, along with PWs Ahmad Sher and Talib Hussain, rushed to the scene

whereupon the accused fled. Nasira Bibi succumbed to her injuries on the spot, while Mulazim Ali was taken to DHQ Hospital, Mandi Bahauddin. The Complainant alleged that Allah Bakhsh, Ahmad Khan, and Khizar Hayat abetted the offence.

2. Sajjad Azam/SI (CW-9) recorded police *karwai* on the application Exh. DA and sent it to Police Station Miana Gondal through Qalb-e-Abbas 285/HC. Based on this application, Zafar Iqbal/ASI (CW-10) registered FIR No.1/2019 dated 02.01.2019 (Exh. CW-10/A).

3. During the investigation, the police found that Jamshed, Muhammad Nawaz, Allah Bakhsh, Ahmad Khan, and Khizer Hayat were not involved in the occurrence. Dissatisfied with this finding, the Complainant filed a private complaint titled: “*Muhammad Azam v. Jamshed etc.*” (Exh. PA).

4. The Sessions Judge recorded cursory evidence adduced by the Complainant in the private complaint and summoned Jamshed, Rizwan, Muhammad Nawaz, Allah Bakhsh, Ahmad Khan, Khizar Hayat, and Atif. They all appeared before him except Atif, who was declared a proclaimed offender. On 14.09.2020, the Sessions Judge indicted Jamshed, Rizwan, Muhammad Nawaz, Allah Bakhsh, Ahmad Khan, and Khizar Hayat. They pleaded not guilty and claimed trial.

5. Upon the conclusion of the trial, vide judgment dated 12.05.2022 (the “Impugned Judgment”), the Sessions Judge acquitted Allah Bakhsh, Ahmad Khan, and Khizar Hayat, extending them the benefit of doubt. However, he convicted and sentenced Jamshed, Muhammad Nawaz, and Rizwan as follows:

Jamshed

- i) Convicted under section 302(b) PPC and sentenced to life imprisonment with a direction to pay compensation of Rs.500,000/- to the deceased’s legal heirs in terms of section 544-A Cr.P.C. and, in default thereof, he shall further undergo simple imprisonment for six months.
- ii) Convicted under section 324 PPC and sentenced to rigorous imprisonment for ten years with a fine of Rs.200,000/- and, in default thereof, he shall further undergo simple imprisonment for six months.
- iii) Convicted under section 337-F(i) PPC and sentenced to rigorous imprisonment for one year with a direction to pay Rs.50,000/- as *Daman* to the injured, and till its realization, he shall be kept in jail.

- iv) Convicted under section 337-F(v) PPC and sentenced to rigorous imprisonment for five years with a direction to pay Rs.200,000/- as *Daman* to the injured, and till its realization, he shall be kept in jail.

Jamshed's sentences of imprisonment were ordered to run concurrently, and the benefit of section 382-B Cr.P.C. was extended to him.

Muhammad Nawaz

Convicted under section 302(b) PPC and sentenced to life imprisonment with a direction to pay compensation of Rs.500,000/- to the deceased's legal heirs in terms of section 544-A Cr.P.C. and, in default thereof, he shall further undergo simple imprisonment for six months. The benefit of section 382-B Cr.P.C. was extended to him.

Rizwan

Convicted under section 302(b) PPC and sentenced to life imprisonment with a direction to pay compensation of Rs.500,000/- to the deceased's legal heirs in terms of section 544-A Cr.P.C. and, in default thereof, he shall further undergo simple imprisonment for six months. The benefit of section 382-B Cr.P.C. was extended to him.

6. Jamshed and Muhammad Nawaz (hereinafter referred to as the "Appellants") have filed Criminal Appeal No. 36924/J/2022 against their conviction and sentence. During the pendency of the appeal, they filed an application under section 345 Cr.P.C. bearing Crl. Misc. No.1/2022 seeking permission to compound the offence and acquittal on the basis of compromise arrived at between them and the legal heirs of Nasira Bibi (deceased) and Mulazim Ali, who was injured in the occurrence. Although Rizwan was convicted under section 302(b) PPC alongside the Appellants, he did not file an appeal. His conviction has attained finality and is not under challenge before this Court.

7. This Court called a report from the Sessions Judge, Mandi Bahauddin, which has been received. According to his report dated 12.09.2022, Nasira Bibi deceased left behind Maqsood Bibi (mother), Allah Bakhsh alias Bakhsha (father), and Mulazim Ali (husband). Since Allah Bakhsh was an accused in this case, his name was excluded from the list of legal heirs. The remaining legal heirs (Maqsood Bibi and Mulazim Ali) appeared before the Sessions Judge and recorded their statements affirming that they had entered into a compromise with the Appellants with their free consent and without duress. They further stated that they had voluntarily forgiven the Appellants in the name of Allah Almighty, waived their right of *qisas* and *diyat*, and had no objection if they were acquitted of the charge. The Sessions Judge has confirmed that there is a valid compromise.

8. Mr. Muhammad Mustafa Chaudhry, Deputy Prosecutor General (DPG), has opposed the application under section 345 Cr.P.C. He contends that this is a case of honour killing, which falls within the definition of *fasad-fil-arz* under section 299(ee) PPC. In such instances, the proviso to section 311 PPC is attracted, and the offender is liable to be punished by way of *ta'zir* even if the legal heirs of the deceased compromise with him. Hence, Crl. Misc. No.1/2022 is liable to be dismissed.

9. In rebuttal, Mr. Abid Saqi, Advocate, contends that the evidence on record does not establish that Nasira Bibi was killed for honour. Therefore, he argues that there is no impediment in accepting the Appellants' application under section 345 Cr.P.C.

Law and jurisprudence

10. Honour killing refers to the murder of a family member, usually a woman, by her relatives on the belief that she has brought shame or dishonour upon the family. This perceived dishonour typically relates to conduct deemed immoral, such as choosing a spouse independently, refusing an arranged marriage, or engaging in a relationship outside societal norms. Such killings are generally driven by entrenched patriarchal and tribal notions of family honour, where control over female autonomy is viewed as essential for preserving social standing. Honour killings are not confined to one region or culture but occur across the world, with a particularly high prevalence in some parts of South Asia, the Middle East, and North Africa, and among migrant communities in Western countries. In Pakistan, honour killings are committed under customs like *karo kari* and *siyah kari*. The persistence of such practices has posed a serious challenge to the rule of law.

11. Courts in Pakistan have consistently deprecated honour killings. In **Muhammad Akram Khan v. The State** (PLD 2001 SC 96), the Supreme Court of Pakistan held that no law or religion permits taking a life in the name of honour, and such killings amount to murder

simpliciter. It further declared that such acts violate fundamental rights under Article 9 of the Constitution.¹

12. Pakistan Penal Code 1860, inherited from British colonial rule, criminalized murder under section 302, and honour killings fell within its scope. However, the law recognized grave and sudden provocation as a valid defence to murder, codified in section 300 Exception 1 of the PPC. This defence allowed individuals to argue that they had acted in the heat of passion, deprived of self-control, due to provocation that was both grave and sudden. If successfully invoked, this defence could result in an outright acquittal or a reduction in the charge from murder to culpable homicide, not amounting to murder.

13. In 1990, the Federal Shariat Court (FSC) revisited the validity of the provocation defence to align Pakistan's Penal Code with Islamic principles. The FSC ruled that provocation – no matter how grave or sudden – does not absolve an individual of the crime of murder under Islamic law. According to Shariah, intentional killing (*qatl-e-amd*) is a heinous offence, and the emotional state of the accused does not negate their intent or responsibility for taking a life. This ruling marked a significant departure from the colonial legal framework, categorically rejecting provocation as a complete defence to murder. The same year, through the Criminal Law (Second Amendment) Ordinance No. XXI of 1990, the original Chapter XVI of the Pakistan Penal Code was omitted and substituted with new provisions. The newly inserted section 302 PPC created a distinction in the punishments awardable for *qatl-e-amd* (intentional murder), namely, *qisas* and *ta'zir*. The re-enacted section 309 PPC permitted the waiver of the right of *qisas* where a *Wali* granted *afw* to the *qatil* (the murderer), while section 310 allowed compounding of that right through acceptance of *Badal-e-sulh* (compensation money). However, these provisions were frequently misused in honour killing cases, where the perpetrators and legal heirs often belonged to the same family, resulting in impunity. This led to further legislative reform. Parliament enacted the Criminal Law (Amendment) Act 2004, and then

¹ Similar view was expressed in *Muhammad Ali Mahar v. The State* (2024 SCMR 1584). Also see: *Muhammad Siddique v. The State* (PLD 2002 Lahore 444).

the Criminal Law (Amendment) (Offences in the Name or Pretext of Honour) Act 2016.

14. Pakistan's current legal framework classifies honour killing as murder falling under the category of *fasad-fil-arz* under section 299 (ee) PPC.² Under section 302 PPC, *qatl-e-amd* is punishable with (a) death as *qisas*, or (b) death or imprisonment for life as *ta'zir* having regard to the facts and circumstances of the case, if the proof in either of the forms specified in section 304 is not available, or (c) with imprisonment of either description for a term which may extend to twenty-five years, where the punishment of *qisas* is not applicable according to the Injunctions of Islam. The 2016 amendment has introduced a proviso to clause (c) of section 302 PPC, removing the defence based on the pretext of honour.³

15. Section 305 PPC stipulates that in cases of *qatl*, the *Wali* means the legal heirs of the victim determined according to the victim's personal law. However, in cases of *qatl-e-amd* committed in the name or on the pretext of honour, the *Wali* shall not include the accused or convict. If there is no heir, the Government shall be the *Wali*. Section 311 PPC addresses the imposition of *ta'zir* where the right of *qisas* has been waived or compounded in *qatl-e-amd*. It provides that, notwithstanding anything contained in sections 309 or 310 PPC, where all the *Walīs* do not waive or compound the right of *qisas*, or if the principle of *fasad-fil-arz* is attracted, the court may, considering the facts and circumstances of the case, punish the offender with death, imprisonment for life, or imprisonment of either description for a term which may extend to fourteen years as *ta'zir*. The proviso to this section further states that if the offence has been committed in the name or on the pretext of honour, the punishment shall be imprisonment for life.

16. A parallel framework exists under section 337-N PPC for hurt cases: sub-section (1) lists situations where *qisas* is unenforceable,

² Section 299(ee) PPC reads as follows:

(ee) "*fasad-fil-arz*" includes the past conduct of the offender or whether he has any previous conviction or the brutal or shocking manner in which the offence has been committed which is outrageous to the public conscience or if the offender is considered a potential danger to the community or if the offence has been committed in the name or on the pretext of honour.

³ The proviso to clause (c) of section 302 PPC states: "... nothing in clause (c) shall apply where the principle of *fasad-fil-arz* is attracted and in such cases only clause (a) or clause (b) shall apply."

while sub-section (2) authorizes the imposition of *ta'zir* in cases involving an offender who is a previous convict, a habitual, hardened, desperate, or dangerous criminal, or where the offence has been committed in the name or on the pretext of honour. The proviso to sub-section (2) further stipulates that in such cases, *ta'zir* shall not be less than one-third of the maximum punishment prescribed for the kind of hurt caused.

17. Section 338-E(1) PPC states that all offences under Chapter XVI may be waived or compounded, subject to section 345 Cr.P.C., and that the principles of sections 309 and 310 PPC apply *mutatis mutandis*. Where an offence has been waived or compounded, the court may, in its discretion and, having regard to the facts and circumstances of the case, either acquit the offender or award punishment as *ta'zir* according to the nature of the offence. However, where an offence under the aforesaid Chapter has been committed, and the principle of *fasad-fil-arz* is attracted, the court shall, having regard to the facts and circumstances, punish the offender with imprisonment or fine as provided for that offence.

18. In **Zahid Rehman v. The State** (PLD 2015 SC 77), the Supreme Court explained the law regarding *qisas* and *ta'zir* and, by a majority of 3:2, enunciated the following principles:

- (i) The provisions of section 299 PPC make it abundantly clear that in the context of *qatl-e-amd* (intentional murder), *qisas* and *ta'zir* are two distinct and mutually exclusive sentencing regimes. A person convicted of *qatl-e-amd* may be punished with *qisas* under section 302(a) PPC, only if the evidentiary standards set out in section 304 PPC are met – namely, a voluntary and truthful confession before a competent court, or the testimony of the requisite number of witnesses whose competence is established through *Tazkiya-tul-shahood* as required by Article 17 of the Qanun-e-Shahadat, 1984. The punishment of *qisas* under section 302(a) is rooted in Islamic penal principles and requires strict compliance with these standards. Where such proof is not available, even if the offence amounts to *qatl-e-amd*, the conviction must fall under section 302(b) PPC as *ta'zir*, which operates under a different evidentiary and legal framework. The distinction is not merely procedural but conceptual: the two regimes are exclusive and governed by separate conditions and consequences.
- (ii) If the requirements of section 304 PPC are fulfilled, the sentencing framework of *qisas* becomes applicable. Sections 306 and 307 PPC carve out exceptions to the general rule under section 302(a) PPC, and section 308 PPC provides alternative punishments for *qatl-i-amd* not liable to *qisas*.

(iii) Sections 306 and 307 PPC do not constitute separate or distinct offences. Rather, they provide that in certain categories of *qatl-i-amd*, the punishment of *qisas* cannot be imposed or is not enforceable. Section 308 applies only where, but for the exceptions under sections 306 or 307, the offender would have been liable to *qisas*. Where the conviction is recorded under section 302(b) PPC as *ta'zir*, section 308 has no application.

(iv) The distinction between *qisas* and *ta'zir* is also reflected in the law relating to compromise and waiver. Sections 309 and 310 PPC, which deal with *afw* (waiver) and *sulh* (compounding), apply exclusively to cases governed by the *qisas* regime. In contrast, compromise in cases falling under *ta'zir* is regulated by section 345(2) Cr.P.C. read with section 338-E PPC. Partial compromise is permissible in cases of *qisas* and not of *ta'zir*. Although both *qisas* and *ta'zir* regimes admit the possibility of compounding under certain circumstances, the governing provisions and procedural implications are separate and distinct. The limited commonality in the result does not alter the independent legal status of each regime.

(v) Section 311 PPC further reinforces the exclusive character of *qisas*. It provides that even where the legal heirs of the deceased have waived or compounded *qisas*, the court may nonetheless impose a punishment of *ta'zir* if it forms the opinion that the act has caused *fasad-fil-arz*. However, this provision is applicable only where the offence was otherwise punishable with *qisas* – i.e., where the evidentiary requirements of section 304 PPC were fulfilled, and the case originally attracted section 302(a) PPC. It cannot be invoked in cases where the conviction is recorded under section 302(b) PPC as *ta'zir*.

(vi) Section 311 PPC is relevant and can be pressed into service only in cases of *qisas* and not of *ta'zir*.

19. Section 345 Cr.P.C. classifies compoundable offences into two categories. The offences listed in the Table under sub-section (1) of this section, which are punishable under the Pakistan Penal Code, are compoundable by the persons mentioned in the third column of that Table without requiring the court's permission. On the other hand, the offences listed in the Table under sub-section (2) are compoundable only if the court permits. As a result, the offences not enumerated in either Table cannot be compounded. The offence under section 302 PPC appears in the second Table, requiring court approval.

20. Section 345(2A) Cr.P.C. added by Criminal Law (Amendment) Act 2004 (I of 2005) states: "Where an offence under Chapter XVI of the Pakistan Penal Code, 1860 (Act XLV of 1860) has been committed in the name or on the pretext of *karo kari*, *siyah kari* or similar other customs or practices, such offence may be waived or compounded subject to such conditions as the court may deem fit to impose with the consent of the parties having regard to the facts and circumstances of the case." Section 345 (5A) Cr.P.C. provides that a

High Court, exercising his revisional powers under section 439 Cr.P.C., or a Court of Session under section 439-A Cr.P.C. may permit the compounding of any offence that is compoundable under section 345. Importantly, section 345(7) categorically states that no offence shall be waived or compounded except as provided under section 345 Cr.P.C. and section 311 PPC.

21. In **Muhammad Rawab v. The State** (2004 SCMR 1170), the Supreme Court emphasized that section 345 Cr.P.C. is exhaustive and courts cannot expand its scope on equitable or humanitarian grounds. The Court reaffirmed this rule in **Moinuddin and others v. The State and others** (PLD 2019 SC 749), and further held that the compounding of a coordinate compoundable offence does not justify acquittal in a non-compoundable one.

22. In **Azmat and another v. The State** (PLD 2009 SC 768), the Supreme Court held that sections 309 and 310 PPC permit only the waiver or compounding of the right of *qisas* through *afw* or *badal-e-sulh*, but do not by themselves result in the acquittal of the accused. Such waiver remains subject to section 311 PPC, under which the offender may still be punished by *ta'zir* where the principle of *fasad-fil-arz* is attracted or where all the legal heirs have not joined the compromise. The Supreme Court clarified that acquittal in murder cases based on compromise is envisaged and regulated by sub-sections (2) and (6) of section 345 Cr.P.C., but such acquittal is not automatic. Even if all the *Walis* agree, it is contingent upon the court's permission, which may be withheld for valid reasons. In other words, the court may decline to acquit the accused despite a complete compromise after judicial scrutiny. The Supreme Court further observed that laying down rigid categories for when permission should be granted or refused would be neither possible nor desirable. Each case must be assessed individually by the trial court, applying its judicial mind to all relevant facts and circumstances, such as the past conduct and character of the accused, the motive behind the act, the manner and brutality of its commission, and whether the offence amounts to *fasad-fil-arz*. The Supreme Court directed that upon receiving a compromise application, a court should not proceed blindly to record acquittal but must first hold an inquiry to

ascertain the facts referred to above. It held that where a compromise is reached after the evidence has been recorded, the court may rely on the trial record to assess whether section 311 PPC or section 345(2) Cr.P.C. is attracted. However, where the compromise is effected before the recording of evidence, it is advisable for the trial court to postpone its decision on acquittal to discover the relevant facts and circumstances, including whether the case involves *fasad-fil-arz*, and may even require the parties to lead evidence for that purpose. Only after applying its judicial mind should the court decide whether to accept or reject the compromise, and in either case, the decision must be embodied in a speaking order stating reasons for the conclusion reached.⁴

23. It is noteworthy that the Supreme Court in *Zahid Rehman* interpreted section 311 PPC as applying only where the offence was otherwise punishable with *qisas* under section 302(a) PPC. However, the 2016 amendment introduced a clear statutory mandate that where the court finds that a murder has been committed in the name or on the pretext of honour, it must impose life imprisonment, irrespective of any waiver or compromise by the legal heirs. The object of this legislative change was to treat honour killings as public wrongs and to eliminate impunity in such cases, particularly where offenders seek to escape serious punishment through intra-family settlements. This statutory reform reflects a legislative departure from the earlier interpretation adopted in *Zahid Rehman*.

24. At first glance, there appears to be a tension between section 345(2A) Cr.P.C. – which permits compounding of honour-related offences subject to judicial approval – and section 311 PPC. However, the two provisions serve different purposes. Section 345(2A) Cr.P.C. governs the procedural question of whether the court may accept a compromise. It enables the court to examine the voluntariness, legitimacy, and contextual fairness of the compromise. In contrast, section 311 PPC regulates the penal consequence of such compounding. Even if a compromise is accepted under section 345(2A), the court remains bound to impose life imprisonment under section 311 PPC if

⁴ Also see: *Naseem Akhtar and another v. The State* (PLD 2010 SC 938). In this case, the Supreme Court reiterated that permission to compound is not a formality; even a valid, voluntary compromise may be declined if the circumstances, such as brutality, public outrage, or ulterior motives, justify withholding judicial sanction.

the offence is found to have been committed in the name or on the pretext of honour. The waiver affects only *qisas* and does not preclude the imposition of *ta'zir*, which becomes compulsory in such cases. This interpretation is reinforced by the second proviso to section 310 PPC, which prohibits the award of *diyat* where the offender is sentenced to *ta'zir* under section 302 or section 311 PPC, thereby underscoring that no financial substitution can mitigate the statutory punishment once imposed. Accordingly, the two statutory regimes, section 345(2A) Cr.P.C. and section 311 PPC, are not in conflict but operate sequentially. In cases where *fasad-fil-arz* is not attracted, and the court is satisfied that the compromise is genuine and voluntary, it retains discretion to acquit the accused.

The present case

25. In the present case, the Complainant alleged that his son, Mulazim Ali, had married Nasira Bibi (daughter of Allah Bakhsh and sister of Appellant Jamshed) against her family's wishes, which led to a grudge and the subsequent attack in which Nasira Bibi was killed and Mulazim Ali was injured. The Appellants were indicted under sections 302, 324, 311, 109, and 34 PPC. The charge under section 311 PPC specifically alleged that the offence was committed on the pretext of honour.⁵ However, in the Impugned Judgment, the trial court convicted the Appellants under sections 302(b), 324, 337-F(i), and 337-F(v) PPC but did not give any finding on the charges under sections 311 and 34 PPC. Although the motive was referenced, it was not properly evaluated in the context of the charge under section 311 PPC. This omission constitutes a material irregularity, as section 367 Cr.P.C. requires a reasoned judgment on every charge framed during the trial.⁶

26. It is pertinent to note that the charge under section 109 PPC was not directed against the present Appellants but was framed against

⁵ The charge under section 311 PPC read as follows:

“Thirdly, on the same date, time and place, you accused have committed this occurrence on the pretext of honour as Mulazim Ali (son of complainant) contracted love marriage with Mst. Nasira Bibi deceased (daughter of you, Allah Bukhsh accused). Hence, you accused persons have committed an offence u/s 311 PPC, which is within the connizance of this court.”

⁶ *Pervaiz Haider Khan v. The State and others* (2018 PCr.L.J 77), and *Abdul Ghafoor and others v. The State and others* (2020 PCr.LJ 1286).

Allah Bakhsh, Ahmad Khan, and Khizar Hayat, who have since been acquitted. Accordingly, no finding is required on that charge.

27. Although this Court, in the exercise of its appellate powers under section 423 Cr.P.C., may record findings of fact and law, it would not be appropriate to do so in the present case. The charge under section 311 PPC raises distinct factual and legal issues, including whether the offence was committed in the name or on the pretext of honour, thereby attracting the principle of *fasad-fil-arz* under section 299(ee) PPC. This determination requires an evaluation of motive, the manner of commission, and other surrounding circumstances, all of which are best addressed by the trial court in the first instance. Most importantly, a finding under section 311 PPC carries a mandatory sentence of life imprisonment where honour is involved. Therefore, the accused must be given a fair opportunity to contest the charge at the trial level. Deciding this issue at the appellate stage without the benefit of the trial court's finding would not only prejudice the Appellants but also compromise procedural fairness. Similarly, the trial court must record a finding on the charge under section 34 PPC, which was framed but left unaddressed in the Impugned Judgment.

28. Given the above, the matter must be remanded for a limited purpose: to re-write the judgment determining whether the offence falls within the mischief of *fasad-fil-arz*, as defined in section 299 (ee) PPC, and attracts section 311 PPC, and whether the charge under section 34 PPC is made out on the basis of the evidence on record.

Disposition

29. For the reasons stated above, this appeal is **partly allowed**. The Impugned Judgment dated 12.05.2022 is set aside to the extent that it omits a finding on sections 311 and 34 PPC, and the case is remanded to the Sessions Judge, Mandi Bahauddin, for a limited purpose specified in the preceding paragraph. This direction applies only to the extent of the present Appellants, Jamshed and Muhammad Nawaz. Since Rizwan has not filed an appeal, his conviction has not been reconsidered in these proceedings.

30. In **Nazak Hussain v. The State** (PLD 1996 SC 178), the Supreme Court of Pakistan formulated guidelines for dealing with the

issue of waiver and compounding of offences under Chapter XVI of the PPC. It held that in the case of *qatl-e-amd* if the right of *qisas* is waived without any compensation or compromise is arrived at between the parties, i.e., accused and the adult legal heirs of the deceased, during the pendency of the trial, the application for permission to compound the offence shall be made before the trial court who shall determine all questions relating to waiver or compounding of an offence or awarding punishment under section 310 PPC. The Appellants' application under section 345 Cr.P.C. (Crl. Misc. No. 1/2022) shall also be placed before the trial court for a decision in accordance with the law. If the court concludes that section 311 PPC is not attracted, it shall decide the application on its merits following the law laid down by the superior courts. On the other hand, if it finds that section 311 PPC applies, the consequence would be that the compromise cannot result in acquittal. The Appellants must be sentenced to life imprisonment as mandated by the proviso to section 311 PPC.

31. The trial court shall undertake the above-mentioned exercise after hearing all necessary parties and examining the relevant record and shall pass a reasoned judgment within 30 (thirty) days.

32. A word about the Sessions Judge's report dated 12.09.2022 submitted in Crl. Misc. No. 1/2022. The record shows that Nasira Bibi deceased was survived by three legal heirs: Maqsood Bibi (mother), Allah Bakhsh alias Bakhsha (father), and Mulazim Ali (husband). The Sessions Judge excluded Allah Bakhsh from the list of legal heirs on the basis of clause (a) of section 305 PPC, observing that he had been an accused in the case. However, this exclusion was misplaced because the trial court acquitted Allah Bakhsh through the Impugned Judgment dated 12.05.2022, and that acquittal has not been challenged. The disqualification under section 305(a) PPC applies only to a person who is an accused or a convict at the time the question of waiver or compounding is considered. Once acquitted and in the absence of any pending appeal, the disqualification ceases to apply, and such a person is restored to their status as a *Wali* under the law. Therefore, on remand, if the trial court concludes that section 311 PPC is not attracted and proceeds to assess the validity of the compromise, it shall issue notice to

Allah Bakhsh and afford him an opportunity to record a statement, so that the question of whether the offence has been compounded by all the *Walis* can be conclusively determined.

33. This judgment does not express any opinion on the merits of the compromise or the guilt or innocence of the Appellants under section 311 PPC. Those questions are left open for the trial court to determine in accordance with the law and without being influenced by any observations made herein.

(Tariq Saleem Sheikh)
Judge

Naeem

Approved for reporting

Judge